

Actus Reus

A concise Legal English study guide

Actus reus is the external element of a criminal offence. It identifies what must happen in the physical world before criminal liability can arise. Depending on the offence, it may consist of conduct, circumstances, a prohibited result or a legally significant omission.

The basic structure of criminal liability

$Actus\ reus + Mens\ rea - Valid\ defence = Criminal\ liability$

This is a general analytical formula, not an inflexible rule. The precise actus reus and mens rea depend on the offence. Strict liability may remove the need to prove mens rea for one or more elements, but the prosecution must still prove the required external elements.

Meaning and function

The actus reus is offence-specific. A court does not merely ask whether the defendant did something wrong. It asks whether the conduct, circumstances and results required by the particular offence have been proved.

- **Conduct** describes what the defendant did.
- **Circumstances** are the facts that must exist when the conduct occurs.
- **Results** are consequences that the offence requires, such as death in a homicide offence.
- **Omissions** may qualify where the law imposed a duty to act and the defendant failed to perform it.

An act or a legally significant omission

A guilty mind alone is not enough. A person may intend or desire a criminal result, but criminal liability for the completed offence requires the external elements of that offence. Mere thoughts do not constitute the actus reus of murder, fraud or any other completed crime.

An omission is not automatically criminal. Liability for failing to act arises only in recognised circumstances, normally where the defendant was under a legal duty to take action and the omission satisfies the elements of the offence.

R v Deller

R v Deller [1952] 36 Cr App R 184 illustrates why mens rea cannot replace a missing actus reus.

Facts

The defendant sold a car and represented that it was free from financial encumbrances. He believed this statement was false because he thought that the car was subject to a valid mortgage. In fact, the mortgage document was legally void, so the car was free from the supposed encumbrance and the statement was true.

Decision and principle

The conviction for obtaining money by false pretences was quashed. The defendant intended to deceive and therefore possessed the relevant guilty mind, but he had not made a false representation. A required part of the actus reus was absent. The case shows that a dishonest intention cannot by itself create the completed offence.

The requirement of voluntariness

The defendant's conduct must generally be voluntary. The physical movement must be controlled by the mind. If the body moves without conscious control, the prosecution may be unable to prove the act required by the offence.

Bratty v Attorney General for Northern Ireland

Bratty v Attorney General for Northern Ireland [1963] AC 386 states the general principle that no act is punishable if it is involuntary. The judgment explains that involuntary conduct may include a muscular movement without mental control, such as a spasm, reflex or convulsion, or conduct performed while the person is unconscious of what he or she is doing.

Examples

- A sudden muscle spasm causes a person's arm to strike another person.
- A reflex movement produces contact that would otherwise appear to be an assault.
- A person acts while unconscious after a concussion.

The point is not that harm did not occur. The point is that the bodily movement was not a voluntary act attributable to the defendant in the ordinary criminal-law sense.

Automatism

Automatism describes unconscious or involuntary action in which the mind does not control the body's movement. It may therefore prevent the prosecution from proving a voluntary act. The exact legal treatment depends on the cause of the condition and the rules distinguishing non-insane automatism from insanity.

Evidence is essential. A defendant cannot establish automatism merely by claiming not to remember the event. There must be evidence capable of supporting the conclusion that the conduct was genuinely involuntary.

Separating actus reus and mens rea

Actus reus and mens rea should normally be analysed separately. In a statutory offence, identify the words that describe the external elements and then identify the words that impose a fault requirement. Apply each element to the facts before considering defences.

The division is not always visually obvious. A statutory definition may place external and mental elements in the same sentence. Their close connection does not remove the need to prove both kinds of element where the offence requires them.

Burglary as an illustration

Trespass alone is not burglary. Section 9 of the Theft Act 1968 defines burglary through combinations of entry as a trespasser and further conduct or intention.

- **Section 9(1)(a)** covers entering a building or part of a building as a trespasser with intent to steal, inflict grievous bodily harm or cause unlawful damage.
- **Section 9(1)(b)** covers a person who, after entering as a trespasser, steals or attempts to steal, or inflicts or attempts to inflict grievous bodily harm.

The analytical distinction remains useful. Entry, the building and the status of trespass are external elements. Knowledge or recklessness as to trespass and any required further intention are mental elements. Because the statute connects them closely, a student must read the whole definition before separating the actus reus from the mens rea.

A method for analysing actus reus

- 1 Identify the offence and its legal source.
- 2 List every conduct, circumstance and result element.
- 3 Ask whether liability may be based on an omission and whether a legal duty existed.
- 4 Check that the relevant conduct was voluntary.
- 5 If a prohibited result is required, analyse causation.
- 6 Identify the mens rea required for each relevant element.
- 7 Apply actus reus and mens rea separately, then consider any defence.

Comparison of the main issues

Issue	Core question	General rule	Illustration
Positive act	What did the defendant do	The offence-specific conduct must be proved	Taking property in theft
Omission	Can failure to act suffice	A recognised legal duty and the required failure are normally necessary	Failure to protect where a duty exists
Voluntariness	Was the movement consciously controlled	Involuntary bodily movement is not ordinarily punishable	Spasm reflex or unconscious action
Guilty mind alone	Can intention create the offence	Mens rea cannot replace a missing external element	R v Deller
Mens rea	What fault must accompany the act	The required mental element must correspond to the relevant external element	Burglary under section 9

Key terms

Actus reus: the external elements of a criminal offence

Conduct: the act performed by the defendant

Circumstance: a fact or situation that must exist when the conduct occurs

Result: a consequence that the offence requires the prosecution to prove

Omission: a failure to act that may create liability where the law imposed a duty

Voluntariness: the requirement that the relevant bodily movement be consciously controlled

Automatism: involuntary action performed without conscious control

Encumbrance: a legal or financial claim affecting property

False pretence: an older legal expression for obtaining property or money through a false representation

Trespasser: a person who enters or remains on property without the relevant permission or legal right

Final point

Criminal law punishes conduct, not thoughts alone. The prosecution must prove the external elements of the particular offence and, in the ordinary case, connect them with the required mens rea. The actus reus must also arise from voluntary conduct or from an omission that the law recognises as capable of creating liability.